

This **DEED OF COVENANT** is made the day of 2013

BETWEEN

- (1) THE COURTYARD MANAGEMENT COMPANY (ROCK LANE FARM) LIMITED Company No. 6582924 whose registered office is situate at The Old Stables, Dean Farm Lane, Soulbury, Buckinghamshire LU7 0DE ("the Company") AND
- (2) [INSERT NAME] of No. X The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury, Buckinghamshire LU7 0GY ("the Transferee")

NOW IT IS AGREED as follows :

1 Definitions

In this Deed :

- 1.1 "the Communal Areas" means the land hatched black on the Plan
- 1.2 "the Estate" means the residential development known as The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury, Buckinghamshire LU7 0GY registered at HM Land Registry under Title No: BM308821
- 1.3 "the Property" means No. X The Courtyard, Rock Lane Farm, Soulbury, Buckinghamshire LU7 0GY
- 1.4 "the Plan" means the plan annexed hereto
- 1.5 "the Scheduled Services" means the services set out in the Schedule to this Deed
- 1.6 "the Transferee" includes where the context so admits the successors in title of the Transferee and where the Transferee is more than one person all covenants and agreements on the part of the Transferee contained in this Deed shall be deemed to have been made jointly and severally by all such persons constituting the Transferee
- 1.7 the "Transfer" means a transfer bearing the same date as this Deed and made between (1) the registered Title owner of No. X The Courtyard, Rock Lane Farm, Liscombe Park, Soulbury, Buckinghamshire LU7 0GY and (2) the Transferee
- 1.8 the "Access Road" means the private road giving access from and to the public highway which runs around the perimeter of the Estate and is more particularly delineated on Plans A and B in the transfer of even date herewith

2 Recitals

- 2.1 The Transferee has agreed to purchase the Property together with the easements and other rights in respect of the Communal Areas and Access Road set out in the Transfer
- 2.2 The Transferee has agreed to enter into this Deed in the manner appearing below with the Company

3 Registration as a member of the Company

The Transferee applies to be registered as a member of the Company and the Company undertakes to register the Transferee as a member of the Company.

4 Company's Covenants

The Company covenants with the Transferee that it will :

- 4.1 provide procure and perform in relation to the Communal Areas and the Estate's liability toward the maintenance of the Access Road the Scheduled Services
- 4.2 enter into a Deed of Covenant in the terms of this Deed with any intended Transferee of the Property and give any consent required to HM Land Registry to allow registration of any proposed dealing with the Property provided that the Transferee has observed and performed the covenants on his part contained in this Deed and fulfilled the obligations on his part contained in the Articles of Association of the Company

5 Transferee's covenants with the Company

The Transferee covenants with the Company that he will :

- 5.1 pay to the Company on demand in relation to the Communal Areas and the Estate's liability toward the maintenance of the Access Road a one fourteenth part of the costs and expenses incurred by the Company in providing securing and performing the Scheduled Services including the costs of and incidental to the administration and conduct of the Company's affairs
- 5.2 in any contract for the sale of the Property include a condition that the intending buyer shall upon completion of the contract apply to become registered as a member of the Company
- 5.3 include in any contract for the sale of the Property a condition precedent to performance of the contract that the intending buyer shall enter into a Deed of Covenant with the Company in the terms of this Deed and that the intending buyer shall bear all costs of and incidental to the preparation and execution of the Deed including any stamp duty payable on it

IN WITNESS hereof this document has been executed as a Deed the day and year first before written

EXECUTED as a Deed)
by THE COURTYARD MANAGEMENT)
COMPANY (ROCK LANE FARM) LIMITED)
and signed by a Director or the Secretary)
or two Directors)

EXECUTED as a Deed by)
the said)
in the presence of :)

EXECUTED as a Deed by)
the said)
in the presence of :)

EXECUTED as a Deed by)
the said)
in the presence of :)

SCHEDULE

The Scheduled Services

- 1 The provision and maintenance of all the Access Road and all boundary walls fences roads footpaths drives visitor car parking spaces owner car parking spaces sewers and effluent treatment plant gullies drains and other services passing in under upon and over the Communal Areas
- 2 The mowing and upkeep of all grassed areas and the upkeep of garden and landscaped areas within the Communal Areas when considered expedient

- 3 The provision of lighting including the cost of replacement of equipment and supply of electricity where the same is not the responsibility of any local authority or other authority
- 4 The provision of all such other services and matters which the Company may from time to time consider necessary in the management and upkeep of the Communal Areas and Access Road or in the interest of the residents on the Estate
- 5 The employment of all such agents managers contractors or other persons as shall in the opinion of the Company be necessary
- 6 The payment of all rates insurance premiums and other charges of a like nature which may be charged upon or incurred in relation to the Communal Areas

END